



CHAPTER xxv.

An Act to confirm a Provisional Order made by the Minister of Transport under the Darlington Corporation (Transport &c.) Act 1925 relating to Darlington Corporation trolley vehicles. [30th July 1948.]

WHEREAS under the authority of section twenty-two of the Darlington Corporation (Transport &c.) Act 1925 the 15 & 16 Geo. 5. Minister of Transport has made the Provisional Order set out in c. cxvi. the schedule to this Act annexed :

And whereas a Provisional Order made by the Minister of Transport under the authority of the said section is not of any validity or force whatever until the confirmation thereof by Act of Parliament :

And whereas it is expedient that the Provisional Order made by the Minister of Transport under the authority of the said section and set out in the schedule to this Act annexed be confirmed by Act of Parliament :

Be it therefore enacted by the King's most Excellent Majesty by and with the advice and consent of the Lords Spiritual and Temporal and Commons in this present Parliament assembled and by the authority of the same as follows :—

1. The Order set out in the schedule to this Act annexed shall be Confirmation and the same is hereby confirmed and all the provisions thereof in of Order in manner and form as they are set out in the said schedule shall schedule. from and after the passing of this Act have full force and validity and the date of the same shall be the date of the passing of this Act.

2. This Act may be cited as the Darlington Corporation Trolley Short title. Vehicles (Additional Routes) Order Confirmation Act 1948.

SCHEDULE.

DARLINGTON CORPORATION.

Order authorising the mayor aldermen and burgesses of the county borough of Darlington to use trolley vehicles upon additional routes in the county borough of Darlington.

Short and
collective
titles.

1. This Order may be cited as the Darlington Corporation Trolley Vehicles (Additional Routes) Order 1948 and the Darlington Corporation Transport Act and Orders 1925 to 1936 and this Order may be cited together as the Darlington Corporation Transport Act and Orders 1925 to 1948.

Interpretation.

2. In this Order the following expressions have unless the subject or context otherwise requires the meanings hereinafter assigned to them (namely) :—

“ The Corporation ” means the mayor aldermen and burgesses of the county borough of Darlington ;

“ The county borough ” means the county borough of Darlington ;

“ Trolley vehicle ” has the meaning assigned to it by section 2 (Interpretation) of the Act of 1925 ;

“ The transport undertaking ” means the Darlington Corporation Transport Undertaking constituted by section 46 (Trolley vehicles omnibuses and light railways to constitute Darlington Corporation Transport Undertaking) of the Act of 1925 ;

“ The Order of 1902 ” means the Darlington Light Railways Order 1902 ;

“ The Act of 1925 ” means the Darlington Corporation (Transport &c.) Act 1925.

Power to use
trolley vehicles.

3. Subject to the provisions of this Order and of the Act of 1925 so far as such provisions are not inconsistent with or rendered unnecessary by the provisions of this Order the Corporation may use trolley vehicles upon the following trolley vehicle routes in addition to any routes upon which they are already authorised to use trolley vehicles (that is to say) :—

Route No. 1. Four chains and nine yards or thereabouts in length commencing at the junction of West Row and Tubwell Row thence proceeding along West Row and terminating at the junction of West Row with Horsemarket by a junction with Route No. 8 authorised by the Act of 1925 ;

Route No. 2. Four chains and one yard or thereabouts in length commencing at the junction of Horsemarket and an unnamed road on the east side of the Covered Market thence proceeding along the said unnamed road and Bakehouse Hill and terminating at the junction of Bakehouse Hill with Tubwell Row by a junction with Route No. 1 authorised by the Act of 1925 :

Provided that subsection (B) (4) of section 54 of the Order of 1902 (For the protection of the Postmaster-General) shall be read and have effect as if the words "generated or used by or supplied to the Corporation" were inserted in that subsection in substitution for the words "generated by the Corporation."

4. Subject to the provisions of this Order the undertaking authorised by this Order shall for all purposes be deemed to form part of the transport undertaking. New routes to form part of transport undertaking.

5.—(1) The Corporation shall have power in addition and without prejudice to their powers of borrowing under the Local Government Act 1933 from time to time to borrow without the consent of any sanctioning authority for or in connection with the purpose mentioned in the first column of the following table the sum mentioned in the second column of the said table and they shall pay off all money so borrowed within such period as the Corporation may determine not exceeding that mentioned in the third column of the said table (namely) :— Power to borrow.
23 & 24 Geo. 5.
c. 51.

Purpose. 1	Amount. 2	Period for repayment. 3
The payment of the costs charges and expenses of this Order.	The sum requisite.	Five years from the confirmation of this Order.

(2) The provisions of Part IX of the Local Government Act 1933 so far as they are not inconsistent with this Order shall extend and apply to money borrowed under this section as if it were borrowed under Part IX of that Act and the period fixed for the repayment of any money borrowed under this section shall as respects that money be the fixed period for the purpose of the said Part IX.

(3) In the application of the said provisions of the Local Government Act 1933 to the borrowing of any further money for the purposes of this Order the Minister of Transport shall be the sanctioning authority.

(4) The provisions of this section shall not limit the powers conferred upon the Corporation by section 51 (Power to use one form of mortgage) of the Act of 1925.

6. It shall not be lawful to exercise the powers of borrowing conferred by this Order otherwise than in compliance with the provisions of the Local Authorities Loans Act 1945. Saving for Local Authorities Loans Act 1945.
8 & 9 Geo. 6.
c. 18.

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*Darlington Corporation
Trolley Vehicles (Additional Routes)
Order Confirmation Act, 1948.*

11 & 12 GEO. 6.

Procedure for
making
byelaws.

7. The provisions of section 250 (Procedure &c. for making byelaws) of the Local Government Act 1933 shall not apply in respect of byelaws to be made under section 69 (As to byelaws &c. under this Act) of the Act of 1925.

Cost of Order.

8. All costs charges and expenses of and incidental to the preparing and obtaining and confirming of this Order or otherwise incurred in relation thereto as taxed by the taxing officer of the House of Lords or of the House of Commons shall be paid by the Corporation.

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